

# TERMS OF SERVICE AGREEMENT BETWEEN CATALYST DYNAMICS PVT. LTD. AND SYNERGY NETWORKS LLP

Between: **Catalyst Dynamics Pvt. Ltd.** (Provider) and **Synergy Networks LLP** (User)

Effective Date: 2022-12-06

Termination Date: 2026-12-06

Governing Law: the laws of India

## 1. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

## 3. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

## 4. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this terms of service Agreement dated 2022-12-06 between Catalyst Dynamics Pvt. Ltd. and Synergy Networks LLP. "Services" means the services described in Clause 1. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

## 5. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Catalyst Dynamics Pvt. Ltd. shall process personal data of Synergy Networks LLP's employees or customers only as necessary to perform the Services and strictly in accordance with Synergy Networks LLP's written instructions. Catalyst Dynamics Pvt. Ltd. shall implement appropriate technical and organisational measures to protect such data.

## 6. Indemnification

Catalyst Dynamics Pvt. Ltd. shall indemnify, defend, and hold harmless Synergy Networks LLP and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Catalyst Dynamics Pvt. Ltd.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

## 7. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

## 8. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

## **9. Insurance**

Catalyst Dynamics Pvt. Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 60,00,000 (Rupees Sixty lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 60,00,000 (Rupees Sixty lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Catalyst Dynamics Pvt. Ltd. shall provide evidence of such insurance upon request.

## **10. Audit Rights**

Synergy Networks LLP or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Catalyst Dynamics Pvt. Ltd.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Catalyst Dynamics Pvt. Ltd.'s operations. The cost of the audit shall be borne by Synergy Networks LLP, unless the audit reveals an overcharge of more than five percent (5%), in which case Catalyst Dynamics Pvt. Ltd. shall bear the cost.

**IN WITNESS WHEREOF**

**Provider**

Catalyst Dynamics Pvt. Ltd.

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

**User**

Synergy Networks LLP

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_